IN THE NATIONAL COMPANY LAW TRIBUNAL,

NEW DELHI, COURT-III

IA (Com.A)-172/2024

In

COMPANY PETITION NO. (CAA)- 54(ND)/2023

CONNECTED WITH

COMPANY APPLICATION NO. (CAA) –5(ND)/2023

(Under Rule 11 read with Rule 154 of the NCLT Rules, 2016)

IN THE MATTER OF SCHEME OF ARRANGEMENT

BETWEEN

M/s. SPACK AUTOMOTIVES PRIVATE LIMITED

……. Petitioner Company No.1/ Demerged Company

AND

M/s. GATORCORP AUTOMOTIVES PRIVATE LIMITED

…… Petitioner Company No.2/ Resulting Company

AND

THEIR RESPECTIVE CREDITORS AND SHAREHOLDERS

AND IN THE MATTER OF IA (COM.A)-172/2024

M/s. SPACK AUTOMOTIVES PRIVATE LIMITED

…. Applicant Company/Demerged Company

Order Pronounced On: 09.08.2024

CORAM:

SHRI BACHU VENKAT BALARAM DAS, HON'BLE MEMBER (JUDICIAL) SHRI ATUL CHATURVEDI, HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant : Mr. Aniket Aggarwal Advs.

ORDER

PER: ATUL CHATURVEDI, MEMBER (TECHNICAL)

1. The instant application has been filed on behalf of M/s. Spack Automotives Private Limited ("**Applicant Company**") under the provisions of Rules 11 & 154 of the National Company Law Tribunal Rules, 2016 for correction of certain typographical errors in the Order dated 19.04.2024 passed by this Tribunal in CP(CAA)/54(ND)/2023 connected with Company Application No. (CAA)–5(ND)/2023.

2. The Ld. Counsel for the Applicant Company submits that some unintentional errors have occurred in Cause Title, Paragraph 1, 2 and 20(i) of the Order dated 19.04.2024 in CP(CAA)/54(ND)/2023. Therefore, the Applicant Company has prayed for the rectification of the Final Order.

3. We have heard the submission of Ld. Counsel for the Applicant Company and have perused the record. Apparently, while dealing with CP(CAA)/54(ND) /2023, some inadvertent typographical facts appear in Final Order dated 19.04.2024, accordingly in view of power vested under Section 420(2) of the Companies Act, 2013 read with Rule 11 read with Rule 154 of the National Company Law Tribunal Rules, 2016, this Adjudicating Authority hereby rectifies the above-mentioned errors in CP(CAA)/54(ND)/2023 vide this Corrigendum Order hereby passed in IA (Com.A)-172/2024.

4. Accordingly, Order dated 19.04.2024, is rectified as under: -

   (a) **Cause Title, Paragraph 1 and 2-** The Name of the Applicant Company has been accidently misspelled as M/s. Spack Automatives Private Limited instead of M/s. Spack Automotives Private Limited in the Cause Title, Paragraph 1 and 2 as per the Order dated 19.04.2024. Therefore, it is to be read as "M/s. Spack Automotives Private Limited".

   (b) **Paragraph 20(i)-** The Paragraph 20(i) as per the Final Order dated 19.04.2024 reads as under: -

   "The appointed date in the Scheme of Arrangement is the date approved by the Tribunal. We approve the "Appointed Date" to be 1st April, 2023."

As prayed for by the Applicant Company, Paragraph 20 (i) will now be read as under:

> *"The appointed date in the Scheme of Arrangement is the effective date, i.e., the date on which the certified copy of the order of this Tribunal sanctioning the Scheme is filed with the concerned Registrar of Companies."*

The Order dated 19.04.2024 is modified to the extent as indicated above. This Corrigendum Order shall be read as part of Original Order dated 19.04.2024.

Accordingly, the instant Application **IA (Com.A)-172/2024** in CP(CAA)/54 (ND)/2023 stands **allowed**.

-Sd-
(ATUL CHATURVEDI)
MEMBER (TECHNICAL)

-Sd-
(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)